

Laxmi Narayan Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 August 2022 · Writ-C No. 20625 of 2022 · Writ-C No. 20625 of 2022 · **Writ disposed; clause 6.5 objection to be decided; recovery stayed eight weeks.**

HEADNOTE

Without examining the merits of a recovery notice of Rs. 2,20,677, the Allahabad High Court disposed of the writ by relegating the consumer to an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005. If filed within four weeks, respondent no. 2 is to decide it in accordance with law within the next four weeks after hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Laxmi Narayan Gupta filed a writ petition in the Allahabad High Court seeking quashing of a recovery notice/certificate dated 16 May 2022 for Rs. 2,20,677 issued by respondent no. 3 of the Power Distribution Corporation, and a mandamus to decide his application dated 3 June 2022. Counsel for the distribution licensee stated on instructions that the petitioner may file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to recovery demand

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery notice is disposed of by giving the consumer liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery notice was disposed of without merits adjudication by relegating the consumer to the clause 6.5 objection before respondent no. 2. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The statutory remedy identified for the disputed recovery demand of Rs. 2,20,677 was an objection under Para 6.5 of the Supply Code, to be decided in a time-bound manner after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY NOTICE/CERTIFICATE DATED 16 MAY 2022 FOR RS. 2,20,677

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1